

**UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF PENNSYLVANIA**

CNX RESOURCES CORPORATION,

Plaintiff,

v.

CAPITAL & MAIN

Defendant.

Case No. 2:25-cv-01471

COMPLAINT

Jury Trial Demanded

Plaintiff CNX Resources Corporation (“CNX”) brings this complaint for defamation against Defendant Capital & Main (“Capital & Main”), and states as follows:

NATURE OF THE ACTION

1. This action arises out of a “hit piece” against CNX, a Pennsylvania natural gas producer, published in an ideologically-driven — and funded — media outlet and written by a journalist with a professed agenda.

2. Capital & Main is a California-based environmental media outlet that is funded by renewable energy interests, including the Heinz Philanthropies, which, among other things, provides strategic support for the implementation of renewable and alternative energy solutions in Western Pennsylvania. The Heinz Philanthropies have been a frequent critic of CNX.

3. Although thousands of miles away from Capital & Main’s homebase in California, Capital & Main has a journalist on staff who specifically promotes her work as “investigating oil and gas and its harms in PA.” This journalist wrote the Capital & Main article at issue.

4. Just like other recent instances of media outlets allowing their desired narrative on a hot button issue to supersede journalistic integrity resulting in eye-popping payments to resolve defamation claims, Capital & Main published false and defamatory statements regarding CNX in an article entitled, “Pennsylvania Gas Driller: Our Operations Pose No Health Risk. You Can’t Be Serious, Activists Say” (the “Article,” attached as Exhibit 1).

5. The Article addresses a report that CNX released entitled “Initial Results are in: Radical Public-Private Collaboration Demonstrating CNX Natural Gas Development Poses No Public Health Risks” (the “Report”). The Report is part of CNX’s Radical Transparency program — a program established through an agreement with Pennsylvania governor, Josh Shapiro, and the state Department of Environmental Protection that provides a source of factual information and recorded environmental data on the impact of natural gas operations in Pennsylvania.

6. Pursuant to the Radical Transparency program, CNX began monitoring and providing real-time data on air quality, waste monitoring and water quality at certain of its gas well pads. Since the inception of the Radical Transparency program, hundreds of thousands of data measurements have been collected and reported to the Pennsylvania Department of Environmental Protection and posted on CNX’s Radical Transparency website.

7. The Report specifically analyzed air monitoring data for two of CNX’s continuously-monitored gas well pads and compared those results to data reported by the regional air quality monitoring network maintained by the Pennsylvania Department of Environmental Protection and the federal Environmental Protection Agency’s National Ambient Air Quality Standards.

8. As the title of the Article suggests, Capital & Main served as a mouthpiece for one-sided and unbalanced attacks by renewable energy activists against CNX’s Radical Transparency

program in general and the Report in particular. Such attacks included the specific statements described in detail herein that are false and defamatory *per se*.

9. Although Capital & Main purports to be a legitimate media outlet providing objective fact-based reporting, the Article lacks basic journalistic rigor and instead is nothing more than the instrumentality for a coordinated attack on CNX and its Radical Transparency program by the renewable energy interests that fund Capital & Main. CNX expects that discovery will reveal active collusion among such parties.

10. While Capital & Main and the renewable energy activists quoted in the Article may have the right to criticize the methodology of the Report or the conclusions drawn in the Report, the Article became legally actionable when it published purportedly fact-based statements accusing CNX of such serious business misconduct as alleged fabrication of data and alleged securities market manipulation in connection with the release of the Report.

11. For a publicly-traded corporation like CNX with a market capitalization of over \$4 billion, such ideological attacks cloaked with the patina of a purported legitimate media outlet can be particularly damaging to the corporation's reputation and goodwill leading to significant loss of shareholder value.

12. In addition to financial harm, divisive agenda-based reporting like that practiced by Capital & Main can have the effect of demonizing the article's subject and radicalizing individuals to act out. CNX has been forced to take additional security precautions for its personnel and property in light of the potential risks.

THE PARTIES

13. CNX is a corporation organized under the laws of the State of Delaware with its principal place of business at 1000 Horizon Vue Drive, Canonsburg, Pennsylvania 15317.

14. Capital & Main is a non-profit corporation incorporated in California with its principal place of business located in California.

JURISDICTION AND VENUE

15. The Court has subject-matter jurisdiction over this action pursuant to 28 U.S.C. § 1332 because the parties are citizens of different states and the amount in controversy exceeds \$75,000 exclusive of interest and costs.

16. The court has personal jurisdiction over Capital & Main because Capital & Main made Pennsylvania the focal point of its conduct by, among other things, (i) reporting on activities undertaken by CNX in Pennsylvania and related to residents of Pennsylvania; and (ii) directing the Article to readers in Pennsylvania via its website that is accessible to Pennsylvania residents where CNX transacts the majority of its business operations.

17. Venue is proper in this District pursuant to 28 U.S.C. § 1391(b)(1) because (i) CNX is a resident of the judicial district of the Western District of Pennsylvania and (ii) a substantial part of the events giving rise to the claim occurred in the judicial district of the judicial district of the Western District of Pennsylvania.

THE FACTS

A. CNX's Radical Transparency Program

18. In late 2023, CNX unveiled a first-of-its-kind collaboration on environmental monitoring, data collection, and real-time disclosures with Pennsylvania's Governor, Josh Shapiro, and the Pennsylvania Department of Environmental Protection. CNX coined the program "Radical Transparency."

19. As part of the program, CNX began monitoring air and water quality for operations across CNX's footprint and providing the data open source in real-time via a public

website.

20. To provide transparency and confidence to the public in the data's reliability, the air quality data is collected by an accredited third party and shared with the Pennsylvania Department of Environmental Protection and with CNX at the same time.

21. CNX also discloses the chemicals intended to be used for drilling and hydraulic fracturing before they are used.

22. As CNX describes on its website, these disclosures are intended to create a mutual trust that will serve as the basis for future cooperation and real environmental and economic progress.

B. Capital & Main Is Funded By, and Promotes, the Interests of the Renewable Energy Industry

23. Capital & Main purports to "report[] from California on the most pressing economic, environmental and social issues of our time."

24. Capital & Main's purported mission is "to educate the public on matters of importance such as economic inequality, climate change, health care, threats to democracy, hate and extremism and immigration."

25. Capital & Main's identification and characterization of what constitutes "matters of importance" reveals the ideological bent underlying its mission.

26. To that end, Capital & Main is financed by a number of organizations that have a financial interest in the promotion and adoption of renewable energy including Renewable Resources Group, a private equity firm focused on the renewable energy industry.

27. Capital & Main is also financed by the Heinz Philanthropies, which, among other things, provides strategic support for the implementation of renewable and alternative energy solutions in Western Pennsylvania. In that regard, the Heinz Philanthropies have been a frequent

critic of CNX, including funding the Environmental Health Project which released its own paper in April 2025 attacking the Report by, among other things, claiming the Report was “patently unscientific” and accusing CNX of making false claims in the Report.

28. On its website, Capital & Main promotes that it publishes “[f]act-based reporting, not opinions.” The Article, therefore, must be evaluated as the ostensibly “[f]act-based reporting” that Capital & Main purports it to be.

C. Capital & Main Publishes the Article in Furtherance of Its Purported Mission

29. On September 24, 2024, Capital & Main published the Article.

30. Although thousands of miles away from Capital & Main’s homebase in California, the Article curiously chose to focus exclusively on CNX and its activities in Pennsylvania.

31. The author of the Article is Capital & Main journalist, Audrey Carleton. Ms. Carleton describes herself as an “environmental journalist . . . currently writing scoops, features and investigations about Pennsylvania climate policy and the influence of the oil and gas industry.”

32. Ms. Carleton’s X (Twitter) feed (@audreyjcarleton) states that she is “investigating oil and gas and its harms in PA.”

33. By explicitly promoting her work as “investigating oil and gas and its harms in PA,” Ms. Carleton unabashedly is not evenhanded on the issue — Ms. Carleton’s point of view is that the oil and gas industry causes harms in Pennsylvania.

34. It again seems curious that a California-based media outlet like Capital & Main would have a journalist on staff whose focus specifically is the oil and gas industry in Pennsylvania, and the purported harms that the oil and gas industry supposedly causes in

Pennsylvania no less, except when one considers Capital & Main’s funding from renewable energy interests including the Heinz Philanthropies based here in Western Pennsylvania.

35. The subject of the Article is CNX. Indeed, the subtitle to the Article states, “With billions up for grabs and scores of air quality violations to its name, CNX tries to recast itself as a climate warrior.”

36. As noted at the outset, the Article addresses the Report, which is part of CNX’s Radical Transparency program.

37. The Article derisively refers to the Report as “an industry-written study” that “was released to investors in August.” At first blush it is odd — and erroneous — that the Article refers to the Report as having been “released to investors” when, in fact, the Report was published on CNX’s Positive Energy Hub, which is a CNX news hub that is available to the public in general. The reference starts to make sense, however, when considered in view of certain of the defamatory statements in the Article discussed herein.

38. The Article states that “[t]he study, nicknamed ‘Radical Transparency’ by the natural gas operator, has struck a nerve with climate activists who dismissed it as pseudoscience that flies in the face of peer-reviewed research as well as a 2020 grand jury report that found children and adults who lived near fracking sites were prone to intense nose bleeds, ulcers and rashes.”

39. The Article then serves as the mouthpiece for certain of those climate and renewable energy activists to make false and defamatory statements regarding CNX and the Report.

(i) **The Ketyer Statement**

40. First, the Article states that Dr. Ned Ketyer, identified as the president of

Physicians for Social Responsibility Pennsylvania, “believes CNX’s rosy report was issued not as a good faith effort to advance science but to appease investors ahead of a ratings downgrade from investment bank Piper Sandler, which came the day after CNX issued its release” (the “Ketyer Statement”).

41. Capital & Main, through the Ketyer Statement, accuses CNX, a publicly-traded company, of intentionally using the Report and the timing of its release to manipulate the price of CNX stock in advance of a ratings downgrade. Such alleged stock market manipulation accuses CNX of serious business misconduct, and even a potential federal crime, which constitutes defamation *per se* under the law.

42. The Ketyer Statement is factually false.

43. Piper Sandler did not notify CNX in advance of the ratings downgrade. Indeed, it is generally known, and on information and belief known by Dr. Ketyer, Ms. Carleton and Capital & Main, that analysts do not disclose downgrades to companies prior to publicly announcing the downgrade and did not do so here.

44. Accordingly, it is not possible that CNX issued the Report to appease investors ahead of a ratings downgrade when CNX did not even know about the ratings downgrade in advance at the time that the Report was published.

45. Moreover, Dr. Ketyer, Ms. Carleton and Capital & Main apparently chose not to simply contact Piper Sandler, which would have revealed the falsity of Dr. Ketyer’s accusation of stock market manipulation against CNX.

46. Consistent with Ms. Carleton’s admitted bias against the oil and gas industry, the Article further supports and amplifies Dr. Ketyer’s false and defamatory statement by erroneously describing the Report as having been “released to investors” when, in fact, the

Report was published on CNX's Positive Energy Hub that is generally available to the public and not to investors specifically.

(ii) **The Bomstein Statements**

47. Second, the Article quotes Alex Bomstein, who is identified as the executive director of Clean Air Council, as stating that "CNX's radically dishonest and irresponsible fracking report fails the fundamental tests of scientific integrity" (the "Bomstein Statements").

48. Mr. Bomstein's statements that the Report is "dishonest" and "fails the fundamental tests of scientific integrity" would be understood by an average person hearing the statements to mean that the information and data in the Report were fabricated by CNX.

49. Mr. Bomstein doubles-down on his accusation that CNX fabricated the information and data in the Report by also referring to the Report as "propaganda" — generally understood to mean false or misleading information to influence people's opinions often associated with non-democratic or authoritarian regimes.

50. Mr. Bomstein's statements, as published by Capital & Main, that the information and data in the Report supposedly were fabricated by CNX accuses CNX of serious business misconduct, which constitutes defamation *per se* under the law.

51. The Bomstein Statements are factually false.

52. As noted, data measurements collected through CNX's Radical Transparency program, including the data in the Report, have been reported to the Pennsylvania Department of Environmental Protection and posted on CNX's Radical Transparency website.

53. No basis is provided in the Bomstein Statements, as published by Capital & Main, from which to conclude that the information and data in the Report were fabricated by CNX, and on information and belief Mr. Bomstein, Ms. Carleton and Capital & Main know that none exists.

54. Indeed, the Report states that the data in the Report is collected and qualified by a third party, Clean Air Engineering, which then simultaneously provides the collected data to the Pennsylvania Department of Environmental Protection and CNX. CNX displays the data in real-time on its Radical Transparency website. Because the Report itself makes clear that the data in the Report is provided by a third party and readily verifiable against the real-time data displayed on CNX's Radical Transparency website, Mr. Bomstein, Ms. Carleton and Capital & Main knew that the data in the Report could not have been fabricated by CNX.

COUNT I
DEFAMATION

55. CNX incorporates by reference herein all of the preceding paragraphs as though fully set forth at length.

56. Capital & Main published the Article on its website on or about September 24, 2024.

57. The Article includes the Ketyer Statement and the Bomstein Statements.

58. The Ketyer Statement and the Bomstein Statements concern CNX.

59. The Ketyer Statement and the Bomstein Statements are factually false.

60. The Ketyer Statement and the Bomstein Statements are defamatory *per se* because they accuse CNX of business misconduct and otherwise malign CNX's honesty and integrity in the performance of its business activities, which tend to and did harm the reputation of CNX in its community of Western Pennsylvania and other geographic regions where it operates.

61. The Ketyer Statement and the Bomstein Statements are not subject to any privilege.

62. Capital & Main published the Ketyer Statement and the Bomstein Statements at least negligently and without reasonable care to determine whether they were true or false.

63. Additionally, in publishing the Ketyer Statement and the Bomstein Statements Capital & Main had actual malice in that Capital & Main acted with knowledge that such statements were false, or recklessly disregarded whether they were false or not, including, but not limited to, because Capital & Main had obvious reasons to doubt the veracity of Dr. Ketyer and Mr. Bomstein or the veracity of the Ketyer Statement and the Bomstein Statements.

64. As a result of Capital & Main's defamatory conduct, CNX suffered harm to its reputation and goodwill.

PRAYER FOR RELIEF

WHEREFORE, CNX requests that this Court enter judgment in its favor and against Capital & Main and provide the following relief:

- A. An award of damages in an amount to be proved at trial.
- B. An award of attorneys' fees and costs to the extent permitted by Pennsylvania law.
- C. An award of such other and further relief as this Court deems appropriate.

Dated: September 23, 2025

Respectfully submitted,

/s/ Curtis B. Krasik

Curtis B. Krasik
PA Bar No. 81150
Christopher M. Verdini
PA Bar No. 93245

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Counsel for Plaintiff CNX Resources Corporation

CIVIL COVER SHEET

The JS 44 civil cover sheet and the information contained herein neither replace nor supplement the filing and service of pleadings or other papers as required by law, except as provided by local rules of court. This form, approved by the Judicial Conference of the United States in September 1974, is required for the use of the Clerk of Court for the purpose of initiating the civil docket sheet. (SEE INSTRUCTIONS ON NEXT PAGE OF THIS FORM.)

I. (a) PLAINTIFFS

CNX Resources Corporation

(b) County of Residence of First Listed Plaintiff Washington

(EXCEPT IN U.S. PLAINTIFF CASES)

(c) Attorneys (Firm Name, Address, and Telephone Number)

Curtis B. Krasik

Christopher M. Verdini

K&L Gates LLP, 210 Sixth Avenue, Pittsburgh, PA 15222, 412-355-6500

DEFENDANTS

Capital & Main

County of Residence of First Listed Defendant Los Angeles

(IN U.S. PLAINTIFF CASES ONLY)

NOTE: IN LAND CONDEMNATION CASES, USE THE LOCATION OF THE TRACT OF LAND INVOLVED.

Attorneys (If Known)

II. BASIS OF JURISDICTION (Place an "X" in One Box Only)

- ☐ 1 U.S. Government Plaintiff
- ☐ 2 U.S. Government Defendant
- ☐ 3 Federal Question
(U.S. Government Not a Party)
- ☒ 4 Diversity
(Indicate Citizenship of Parties in Item III)

III. CITIZENSHIP OF PRINCIPAL PARTIES (Place an "X" in One Box for Plaintiff and One Box for Defendant)

- | | PTF | DEF | | PTF | DEF |
|---|---------------------------------------|----------------------------|---|----------------------------|---------------------------------------|
| Citizen of This State | ☒ 1 | ☐ 1 | Incorporated or Principal Place of Business In This State | ☐ 4 | ☐ 4 |
| Citizen of Another State | ☐ 2 | ☐ 2 | Incorporated and Principal Place of Business In Another State | ☐ 5 | ☒ 5 |
| Citizen or Subject of a Foreign Country | ☐ 3 | ☐ 3 | Foreign Nation | ☐ 6 | ☐ 6 |

IV. NATURE OF SUIT (Place an "X" in One Box Only)

CONTRACT	TORTS	FORFEITURE/PENALTY	BANKRUPTCY	OTHER STATUTES
☐ 110 Insurance ☐ 120 Marine ☐ 130 Miller Act ☐ 140 Negotiable Instrument ☐ 150 Recovery of Overpayment & Enforcement of Judgment ☐ 151 Medicare Act ☐ 152 Recovery of Defaulted Student Loans (Excludes Veterans) ☐ 153 Recovery of Overpayment of Veteran's Benefits ☐ 160 Stockholders' Suits ☐ 190 Other Contract ☐ 195 Contract Product Liability ☐ 196 Franchise	PERSONAL INJURY ☐ 310 Airplane ☐ 315 Airplane Product Liability ☒ 320 Assault, Libel & Slander ☐ 330 Federal Employers' Liability ☐ 340 Marine ☐ 345 Marine Product Liability ☐ 350 Motor Vehicle ☐ 355 Motor Vehicle Product Liability ☐ 360 Other Personal Injury ☐ 362 Personal Injury - Medical Malpractice PERSONAL INJURY ☐ 365 Personal Injury - Product Liability ☐ 367 Health Care/Pharmaceutical Personal Injury Product Liability ☐ 368 Asbestos Personal Injury Product Liability PERSONAL PROPERTY ☐ 370 Other Fraud ☐ 371 Truth in Lending ☐ 380 Other Personal Property Damage ☐ 385 Property Damage Product Liability	☐ 625 Drug Related Seizure of Property 21 USC 881 ☐ 690 Other LABOR ☐ 710 Fair Labor Standards Act ☐ 720 Labor/Management Relations ☐ 740 Railway Labor Act ☐ 751 Family and Medical Leave Act ☐ 790 Other Labor Litigation ☐ 791 Employee Retirement Income Security Act IMMIGRATION ☐ 462 Naturalization Application ☐ 465 Other Immigration Actions	☐ 422 Appeal 28 USC 158 ☐ 423 Withdrawal 28 USC 157 PROPERTY RIGHTS ☐ 820 Copyrights ☐ 830 Patent ☐ 840 Trademark SOCIAL SECURITY ☐ 861 HIA (1395ff) ☐ 862 Black Lung (923) ☐ 863 DIWC/DIWW (405(g)) ☐ 864 SSID Title XVI ☐ 865 RSI (405(g)) FEDERAL TAX SUITS ☐ 870 Taxes (U.S. Plaintiff or Defendant) ☐ 871 IRS—Third Party 26 USC 7609	☐ 375 False Claims Act ☐ 400 State Reapportionment ☐ 410 Antitrust ☐ 430 Banks and Banking ☐ 450 Commerce ☐ 460 Deportation ☐ 470 Racketeer Influenced and Corrupt Organizations ☐ 480 Consumer Credit ☐ 490 Cable/Sat TV ☐ 850 Securities/Commodities/Exchange ☐ 890 Other Statutory Actions ☐ 891 Agricultural Acts ☐ 893 Environmental Matters ☐ 895 Freedom of Information Act ☐ 896 Arbitration ☐ 899 Administrative Procedure Act/Review or Appeal of Agency Decision ☐ 950 Constitutionality of State Statutes
REAL PROPERTY ☐ 210 Land Condemnation ☐ 220 Foreclosure ☐ 230 Rent Lease & Ejectment ☐ 240 Torts to Land ☐ 245 Tort Product Liability ☐ 290 All Other Real Property	CIVIL RIGHTS ☐ 440 Other Civil Rights ☐ 441 Voting ☐ 442 Employment ☐ 443 Housing/Accommodations ☐ 445 Amer. w/Disabilities - Employment ☐ 446 Amer. w/Disabilities - Other ☐ 448 Education PRISONER PETITIONS Habeas Corpus: ☐ 463 Alien Detainee ☐ 510 Motions to Vacate Sentence ☐ 530 General ☐ 535 Death Penalty Other: ☐ 540 Mandamus & Other ☐ 550 Civil Rights ☐ 555 Prison Condition ☐ 560 Civil Detainee - Conditions of Confinement			

V. ORIGIN (Place an "X" in One Box Only)

- ☒ 1 Original Proceeding
- ☐ 2 Removed from State Court
- ☐ 3 Remanded from Appellate Court
- ☐ 4 Reinstated or Reopened
- ☐ 5 Transferred from Another District (specify)
- ☐ 6 Multidistrict Litigation

VI. CAUSE OF ACTIONCite the U.S. Civil Statute under which you are filing (Do not cite jurisdictional statutes unless diversity):
28 U.S.C. 1332Brief description of cause:
Defamation action**VII. REQUESTED IN COMPLAINT:**☐ CHECK IF THIS IS A CLASS ACTION UNDER RULE 23, F.R.Cv.P.DEMAND \$
\$75,000+

CHECK YES only if demanded in complaint:

JURY DEMAND: ☒ Yes ☐ No**VIII. RELATED CASE(S) IF ANY**

(See instructions):

JUDGE _____

DOCKET NUMBER _____

DATE

09/23/2025

SIGNATURE OF ATTORNEY OF RECORD

/s/ Curtis B. Krasik

FOR OFFICE USE ONLY

RECEIPT # _____

AMOUNT _____

APPLYING IFP _____

JUDGE _____

MAG. JUDGE _____

JS 44AREVISED June, 2009
IN THE UNITED STATES DISTRICT COURT FOR THE WESTERN DISTRICT OF PENNSYLVANIA
THIS CASE DESIGNATION SHEET MUST BE COMPLETED

PART A

This case belongs on the (☐ Erie ☐ Johnstown ☒ Pittsburgh) calendar.

1. **ERIE CALENDAR** - If cause of action arose in the counties of Crawford, Elk, Erie, Forest, McKean, Venang or Warren, OR any plaintiff or defendant resides in one of said counties.
2. **JOHNSTOWN CALENDAR** - If cause of action arose in the counties of Bedford, Blair, Cambria, Clearfield or Somerset OR any plaintiff or defendant resides in one of said counties.
3. Complete if on **ERIE CALENDAR**: I certify that the cause of action arose in _____ County and that the _____ resides in _____ County.
4. Complete if on **JOHNSTOWN CALENDAR**: I certify that the cause of action arose in _____ County and that the _____ resides in _____ County.

PART B (You are to check ONE of the following)

1. ☐ This case is related to Number _____ . Short Caption _____.
2. ☒ This case is not related to a pending or terminated case.

DEFINITIONS OF RELATED CASES:

CIVIL: Civil cases are deemed related when a case filed relates to property included in another suit or involves the same issues of fact or it grows out of the same transactions as another suit or involves the validity or infringement of a patent involved in another suit
EMINENT DOMAIN: Cases in contiguous closely located groups and in common ownership groups which will lend themselves to consolidation for trial shall be deemed related.

HABEAS CORPUS & CIVIL RIGHTS: All habeas corpus petitions filed by the same individual shall be deemed related. All pro se Civil Rights actions by the same individual shall be deemed related.

PART C

I. CIVIL CATEGORY (Select the applicable category).

1. ☐ Antitrust and Securities Act Cases
2. ☐ Labor-Management Relations
3. ☐ Habeas corpus
4. ☐ Civil Rights
5. ☐ Patent, Copyright, and Trademark
6. ☐ Eminent Domain
7. ☐ All other federal question cases
8. ☐ All personal and property damage tort cases, including maritime, FELA, Jones Act, Motor vehicle, products liability, assault, defamation, malicious prosecution, and false arrest
9. ☒ Insurance indemnity, contract and other diversity cases.
10. ☐ Government Collection Cases (shall include HEW Student Loans (Education), V A Overpayment, Overpayment of Social Security, Enlistment Overpayment (Army, Navy, etc.), HUD Loans, GAO Loans (Misc. Types), Mortgage Foreclosures, SBA Loans, Civil Penalties and Coal Mine Penalty and Reclamation Fees.)

I certify that to the best of my knowledge the entries on this Case Designation Sheet are true and correct

/s/Nathan Townsend

Date: September 3, 2025

ATTORNEY AT LAW

NOTE: ALL SECTIONS OF BOTH FORMS MUST BE COMPLETED BEFORE CASE CAN BE PROCESSED.

INSTRUCTIONS FOR ATTORNEYS COMPLETING CIVIL COVER SHEET FORM JS 44

Authority For Civil Cover Sheet

The JS 44 civil cover sheet and the information contained herein neither replaces nor supplements the filings and service of pleading or other papers as required by law, except as provided by local rules of court. This form, approved by the Judicial Conference of the United States in September 1974, is required for the use of the Clerk of Court for the purpose of initiating the civil docket sheet. Consequently, a civil cover sheet is submitted to the Clerk of Court for each civil complaint filed. The attorney filing a case should complete the form as follows:

- I.(a) Plaintiffs-Defendants.** Enter names (last, first, middle initial) of plaintiff and defendant. If the plaintiff or defendant is a government agency, use only the full name or standard abbreviations. If the plaintiff or defendant is an official within a government agency, identify first the agency and then the official, giving both name and title.
 - (b) County of Residence.** For each civil case filed, except U.S. plaintiff cases, enter the name of the county where the first listed plaintiff resides at the time of filing. In U.S. plaintiff cases, enter the name of the county in which the first listed defendant resides at the time of filing. (NOTE: In land condemnation cases, the county of residence of the "defendant" is the location of the tract of land involved.)
 - (c) Attorneys.** Enter the firm name, address, telephone number, and attorney of record. If there are several attorneys, list them on an attachment, noting in this section "(see attachment)".
- II. Jurisdiction.** The basis of jurisdiction is set forth under Rule 8(a), F.R.Cv.P., which requires that jurisdictions be shown in pleadings. Place an "X" in one of the boxes. If there is more than one basis of jurisdiction, precedence is given in the order shown below.
- United States plaintiff. (1) Jurisdiction based on 28 U.S.C. 1345 and 1348. Suits by agencies and officers of the United States are included here.
- United States defendant. (2) When the plaintiff is suing the United States, its officers or agencies, place an "X" in this box.
- Federal question. (3) This refers to suits under 28 U.S.C. 1331, where jurisdiction arises under the Constitution of the United States, an amendment to the Constitution, an act of Congress or a treaty of the United States. In cases where the U.S. is a party, the U.S. plaintiff or defendant code takes precedence, and box 1 or 2 should be marked.
- Diversity of citizenship. (4) This refers to suits under 28 U.S.C. 1332, where parties are citizens of different states. When Box 4 is checked, the citizenship of the different parties must be checked. (See Section III below; **NOTE: federal question actions take precedence over diversity cases.**)
- III. Residence (citizenship) of Principal Parties.** This section of the JS 44 is to be completed if diversity of citizenship was indicated above. Mark this section for each principal party.
- IV. Nature of Suit.** Place an "X" in the appropriate box. If the nature of suit cannot be determined, be sure the cause of action, in Section VI below, is sufficient to enable the deputy clerk or the statistical clerk(s) in the Administrative Office to determine the nature of suit. If the cause fits more than one nature of suit, select the most definitive.
- V. Origin.** Place an "X" in one of the six boxes.
- Original Proceedings. (1) Cases which originate in the United States district courts.
- Removed from State Court. (2) Proceedings initiated in state courts may be removed to the district courts under Title 28 U.S.C., Section 1441. When the petition for removal is granted, check this box.
- Remanded from Appellate Court. (3) Check this box for cases remanded to the district court for further action. Use the date of remand as the filing date.
- Reinstated or Reopened. (4) Check this box for cases reinstated or reopened in the district court. Use the reopening date as the filing date.
- Transferred from Another District. (5) For cases transferred under Title 28 U.S.C. Section 1404(a). Do not use this for within district transfers or multidistrict litigation transfers.
- Multidistrict Litigation. (6) Check this box when a multidistrict case is transferred into the district under authority of Title 28 U.S.C. Section 1407. When this box is checked, do not check (5) above.
- VI. Cause of Action.** Report the civil statute directly related to the cause of action and give a brief description of the cause. **Do not cite jurisdictional statutes unless diversity.** Example: U.S. Civil Statute: 47 USC 553 Brief Description: Unauthorized reception of cable service
- VII. Requested in Complaint.** Class Action. Place an "X" in this box if you are filing a class action under Rule 23, F.R.Cv.P.
- Demand. In this space enter the actual dollar amount being demanded or indicate other demand, such as a preliminary injunction.
- Jury Demand. Check the appropriate box to indicate whether or not a jury is being demanded.
- VIII. Related Cases.** This section of the JS 44 is used to reference related pending cases, if any. If there are related pending cases, insert the docket numbers and the corresponding judge names for such cases.

Date and Attorney Signature. Date and sign the civil cover sheet.

Signature of Clerk or Deputy Clerk

Civil Action No. 2:25-cv-01471

PROOF OF SERVICE*(This section should not be filed with the court unless required by Fed. R. Civ. P. 4 (l))*

This summons for *(name of individual and title, if any)* _____
 was received by me on *(date)* _____.

☐ I personally served the summons on the individual at *(place)* _____
 _____ on *(date)* _____; or

☐ I left the summons at the individual's residence or usual place of abode with *(name)* _____
 _____, a person of suitable age and discretion who resides there,
 on *(date)* _____, and mailed a copy to the individual's last known address; or

☐ I served the summons on *(name of individual)* _____, who is
 designated by law to accept service of process on behalf of *(name of organization)* _____
 _____ on *(date)* _____; or

☐ I returned the summons unexecuted because _____; or

☐ Other *(specify)*:

My fees are \$ _____ for travel and \$ _____ for services, for a total of \$ 0.00.

I declare under penalty of perjury that this information is true.

Date: _____

Server's signature

Printed name and title

Server's address

Additional information regarding attempted service, etc: